CHAPTER 58 State Human Rights Commission

Establishment

The Protection of Human Rights Act of 1993 provides for the creation of not only the National Human Rights Commission but also a State Human Rights Commission at the state level. Accordingly, a State Human Rights Commission may be constituted by the state government[1].

A State Human Rights Commission can inquire into violation of human rights only in respect of subjects mentioned in the State List (List-II) and the Concurrent List (List-III) of the Seventh Schedule of the Constitution. However, if any such case is already being inquired into by the National Human Rights Commission or any other Statutory Commission, then the State Human Rights Commission does not inquire into that case.

The central government may confer upon the State Human Rights Commissions, the functions relating to human rights in the union territories, except the union Jammu and Kashmir[2], and Ladakh[3]. The functions relating to human rights in case of union territories of Delhi, are to be dealt with by the National Human Rights Commission.

Composition

The State Human Rights Commission is a multi-member body consisting of a chairperson and two members. The chairperson should be a retired Chief Justice or a Judge of a High Court and members should be a serving or retired judge of a High Court or a District Judge in the state with a minimum of seven years experience as District Judge and a person having knowledge or practical experience with respect to human rights.

The chairperson and members are appointed by the Governor on the recommendations of a committee consisting of the chief minister as its head, the speaker of the Legislative Assembly, the state home minister and the leader of the opposition in the Legislative Assembly. In the case of a state having Legislative Council, the chairman of the Council and the leader of the opposition in the Council would also be the members of the committee. Further, a sitting judge of a High Court or a sitting District Judge can be appointed only after consultation with the Chief Justice of the High Court of the concerned state.

The chairperson and members hold office for a term of three years or until they attain the age of 70 years, whichever is earlier. They are eligible for re-appointment. After their tenure, the chairperson and members are not eligible for further employment under a state government or the Central government.

Although the chairperson and members of a State Human Rights Commission are appointed by the governor, they can be removed only by the President (and not by the governor). The President can remove them on the same grounds and in the same manner as he/she can remove the chairperson or a member of the National Human Rights Commission. Thus, he/she can remove the chairperson or a member under the following circumstances:

1. If he/she is adjudged an insolvent; or
2. If he/she engages, during his/her term of office, in any paid employment outside the duties of his/her office; or